

HOUSE BILL 2026

By Williams

AN ACT to amend Tennessee Code Annotated, Title 39;
Title 62, Chapter 18 and Title 66, relative to land
surveying monuments.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 17, Part 1, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Geodetic control monument" means a land surveying monument
established by licensed professional land surveyors and governmental agencies.
A geodetic control monument may be in the form of, but is not limited to, a metal
pin, aluminum disk, brass disk, or other permanent or semi-permanent object, set
in soil, concrete, or rock, and must be marked as a control point or with "do not
disturb" or other language to identify the monument's purpose;

(2) "Historic land surveying monument" means a land surveying
monument established by federal, state, or local governments establishing a
state boundary line, county boundary line, or city boundary line; and

(3) "Property corner monument" means a land surveying monument
established by a licensed professional land surveyor to identify property corners
or property lines, the location and description of which are described in a
recorded document in the register of deeds office of any county in this state. A
property corner monument may be any permanent or semi-permanent object,
including, but not limited to:

(A) Iron or steel pipes, rebar, spikes, nails, or rods;

- (B) Concrete markers, including highway right-of-way markers;
- (C) Stone or rock, whether natural or set;
- (D) Trees, stumps, or temporary wooden stakes;
- (E) Markings or scribes made on trees, concrete, or metal; and
- (F) Such other monuments as may be described in deeds, on plats, and in other instruments of record.

(b)

(1) It is an offense for a person to intentionally move without replacing, alter, destroy, or remove a monument the person knows, or reasonably should know, is a property corner monument, historic land surveying monument, or geodetic control monument.

(2) A violation of subdivision (b)(1) is a Class A misdemeanor.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.